

Plagiarism

What it is
and
How to Recognize and Avoid it

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1. Definition

- ▶ Oxford English Dictionary defines plagiarism as:
 - ▶ 'to take somebody else's ideas or words and use them as if they were one's own.'
- ▶ NUIG Code of Practice for Dealing with Plagiarism
 - ▶ 'plagiarism is the act of copying, including or directly quoting from the work of another without adequate acknowledgement'

Available online at: <http://www.nuigalway.ie/plagiarism>

Plagiarism

"In an academic setting, authoring a document constitutes a representation that the author is the source of all ideas and words not otherwise attributed.

Thus, failure to attribute borrowed words or ideas constitutes plagiarism

PLAGIARISM IS BOTH A LIE AND A THEFT"

L.H Edwards, *Legal Writing Process, Analysis and Organization* (2nd ed. 1999) p.10

Plagiarism

- ▶ Plagiarism covers ALL INSTANCES in which the work of another is used without sufficient acknowledgement, not just the cases of deliberate copying without acknowledging the source.
- ▶ Note: Plagiarism does not require a deliberate attempt to cheat on behalf of the student.

Why is it Important?

It is a matter of academic honesty

The information in books, the internet and other sources does not belong to you – it belongs to the writers who created it.



2. Referencing

- ▶ You avoid plagiarism by ensuring that every piece of writing you create is fully and properly referenced.
- ▶ Further mention of reference and citation style is made below.

Referencing

► When to reference?

AND

► How to reference?

When to Reference?

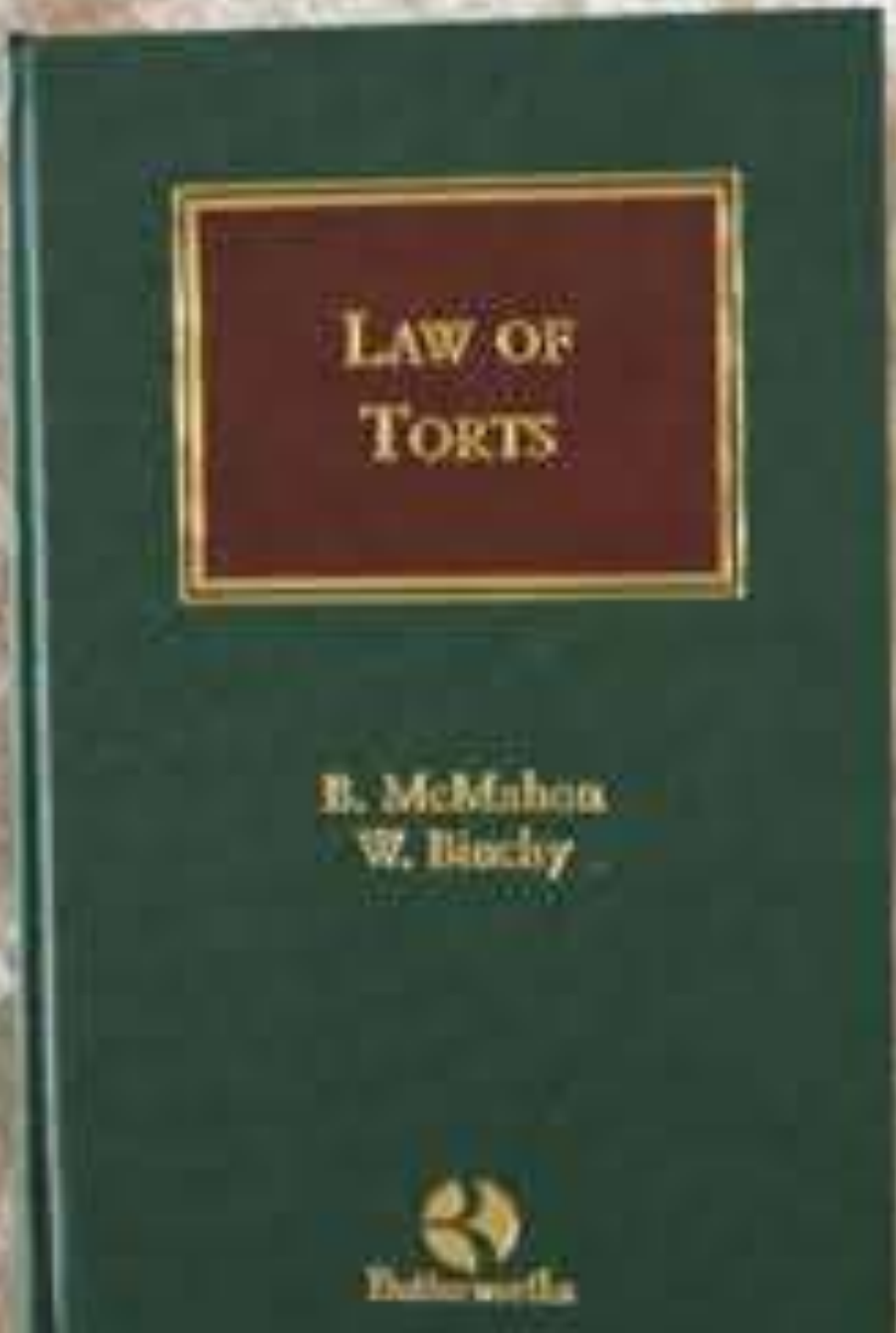
1. Statements of Law

➤ Primary - Legislation

- ▶ Status of Children Act 1986

➤ Secondary - Case Law

- ▶ *Murray v Ireland* [1985] IR 532 (SC), [1985] ILRM 542



When to reference?

- ▶ Books - Example:
- ▶ Bryan McMahon and William Binchy, *The Law of Torts* (3rd ed. Butterworths 2000).

When to reference?

2. Direct Quotations

- ▶ You must attribute each and every quotation to its author and the book/article/journal from which it was drawn, as well as page number or paragraph number.

When to reference?

3. Factual Material

- ▶ Unless common knowledge, factual material must be attributed to its source.
- ▶ Common knowledge is dealt with below.

When to reference?

4. Definitions

- ▶ Again, must be attributed to their source.

3. Incorporation of Another's Work

There are three main ways of incorporating the work of another author into your legal writing:

- ▶ Summarizing
- ▶ Paraphrasing
- ▶ Direct Quotation

Summarizing

- ▶ This occurs when the student rewrites the author's original words in a shortened form, but captures the key points which the author made.

Paraphrasing

- ▶ This occurs when the student rewrites the author's original words but retains the original meaning which the original author made.

Direct Quotation

- ▶ This occurs when the student writes the author's words exactly.

Incorporation of Another's Work

- ▶ All three instances require that the student reference the original author's work because to do otherwise would be plagiarism.
- ▶ This is because in all three instances, the work is not the original work of the student but that of the original author.

Incorporation of Another's Work

GOLDEN RULE:

IF IN DOUBT - REFERENCE

4. Common Knowledge

- ▶ If the material you include in your legal writing is of common knowledge you are not required to reference the source.
- ▶ There is no generally accepted rule or definition as to what constitutes

"common knowledge"

Common Knowledge

- ▶ Widely known historical or current events could be considered common knowledge:
 - ▶ Eg Éamonn de Valera was both a Taoiseach and subsequently the President of Ireland during his political career.
 - ▶ Eg BP had an oil well that exploded in the Gulf of Mexico that released a vast quantity of oil polluting the Gulf.

Common Knowledge is a Moveable Feast

- ▶ The more you know, the harder it is to determine what is "common knowledge".
- ▶ Rule of Thumb
- ▶ Can it be found in several sources?
- ▶ Do many people know this information?
- ▶ The more sources and people who know the information, the more likely that particular piece of information is "common knowledge" and does not need to be referenced.

Common Knowledge

AGAIN: THE GOLDEN RULE

IF IN DOUBT - REFERENCE

5. Inadvertent Plagiarism

- ▶ Inadvertent plagiarism is poor or lazy referencing resulting in incomplete referencing of another's ideas, words or work in the student's piece of legal writing.

* Please note it is still plagiarism.

6. Deliberate Plagiarism

- ▶ Deliberate plagiarism is when a student takes a conscious and deliberate decision to pass the work of another as their piece of writing without acknowledging the original author.

Why do Students Plagiarise?

- ▶ Laziness/Sloppiness/Ignorance
- ▶ In order to obtain a higher mark
- ▶ Poor time management
- ▶ Regardless of the reason, there is no excuse for plagiarism

Cut and Paste (Internet)



N.B .Material Sourced online needs to be referenced

"Word of warning" - the internet is a repository for information but a student should be extremely cautious of information relied upon unless the author of such information is known.

Many sites which purport to give definitive answers to law related issues lack the precision and subtlety required and in certain cases are just plain wrong

In many cases the information may be out of date or from a different jurisdiction

7. Citation

- ▶ In particular, pieces of legal writing must refer to and rely upon the original work of others, be it primary or secondary legislation, an authoritative text book or even an academic piece of writing, to support the argument put forward by the student in their own piece of legal writing so as to lend weight/authority/strength/force to that argument.
- ▶ In order to defeat any suggestion of plagiarism, you must fully and accurately reference your piece of legal writing using an appropriate style of citation consistently.

Citation

- ▶ There is now one style of citation which has been adopted by the School of Law, NUI Galway.
- ▶ The School of Law, NUI Galway will only accept the style of referencing/citation as is outlined in

▶ OSCOLA Ireland

- ▶ OSCOLA stands for 'Oxford University Standard for Citation of Legal Authorities'

GOLDEN RULE

▶ IF IN DOUBT - REFERENCE